IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

Item No. 206
New CA/316/ND/2023 in CA(CAA)/09/ND/2023

IN THE MATTER OF:

Mudrika Fiscal Services Private Limited ... Applicant
And others
And Pacific Development Corporation
Limited & Another

Order under Section 230-232 & 234 of the Companies Act, 2013.

Order delivered on 12.09.2023

CORAM:
MR. MANNI SANKARIAH SHANMUGA SUNDARAM,
HON'BLE MEMBER (JUDICIAL)
DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Sandeep Bhuraria, Ms. Nishtha Grover, Mr. Parijat, Mr. Monish, Mr. Arinjay Singh, Advs.
For the OL : Ms. Hemlata Rawat, Adv.

ORDER

CA No. 316/ND/2023

This is an application filed under Rule 154 read with Rule 11 of the National Company Law Tribunal Rules, 2016 seeking rectification of the Order dated 27.07.2023 passed by this Hon'ble Tribunal in the captioned company application, i.e., CA (CAA) 09/ND/2023).

Learned Counsel for the applicant has submitted that Para No. 44 of the order dated 27.07.2023 states that the Applicant Company No. 15 may conduct the "meeting of shareholders" through Video Conferencing or Other Audio-Visual means whereas as per paragraph No. 38 P (a) of the order dated 27.07.2023 states that the meeting of equity shareholders of the Transferee Company/applicant company No. 15 has been dispensed with.

We have heard the submissions made by Learned Counsel for the applicant. Accordingly, the last sentence of Para No. 44 of the order dated 27.07.2023 stands rectified and to be read as follows. "The Applicant Company No. 15

may conduct the meeting of unsecured creditor through Video Conferencing or Other Audio-Visual means."

Further, the transferor companies are directed to serve notice of the scheme to the Official Liquidator.

This rectification order be read as part and parcel of the order dated 27.07.2023 in CA(CAA)/09/ND/2023 in terms of Rule 154 of NCLT Rules, 2016.

CA No. 316/ND/2023 stands allowed.

Sd/-	**Sd/-**
DR. BINOD KUMAR SINHA	**MANNI SANKARIAH SHANMUGA SUNDARAM**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**

Mukesh